

SYNTHETIC TRAINING RECORD — NOT FILED — ALL NAMES AND FACTS ARE
FICTIONAL

UNITED STATES DISTRICT COURT EASTERN DISTRICT OF VIRGINIA RICHMOND
DIVISION

ASTERGLEN FREIGHT SOFTWARE, INC., Plaintiff,

v.

Civil Action No. SYN-25-0117

COPPER KESTREL LOGISTICS, LLC, and MERIDIAN SILT HOLDINGS, LLC, Defendants.

PLAINTIFF'S MOTION FOR ENTRY OF PARTIAL FINAL JUDGMENT UNDER RULE 54(b)

Asterglen moves for entry of final judgment on Count I under Federal Rule of Civil Procedure 54(b). Count I was dismissed with prejudice, so nothing remains for the Court to adjudicate on that claim. Asterglen requests an express determination that there is no just reason for delay and a separate judgment.

The accompanying argument addresses the five considerations synthesized in *Braswell Shipyards, Inc. v. Beazer East, Inc.*, 2 F.3d 1331, 1335–36 (4th Cir. 1993), as restated in *Kinsale Insurance Co. v. JDBC Holdings, Inc.*, 31 F.4th 870, 873–74 (4th Cir. 2022).

I. Count I has been finally resolved

The January 12 order dismissed Count I with prejudice. Unlike a liability-only ruling with damages left open, the order denies Asterglen all relief on that claim. It is therefore an ultimate disposition of Count I, although other claims remain.

II. Asterglen contends there is no just reason for delay

First, Asterglen characterizes Count I as a contract notice question, while Count II concerns Meridian Silt's alleged interference. Asterglen acknowledges that the counterclaim invokes Section 9.2 but argues it concerns Asterglen's disablement rather than Copper Kestrel's expansion.

Second, Asterglen contends later proceedings will not moot review because Count I has been dismissed with prejudice.

Third, Asterglen argues the appellate court would not decide the identical issue twice because the Count I appeal would ask whether Section 9.2 barred Asterglen's damages demand, while the counterclaim asks whether disabling access breached Asterglen's service duties.

Fourth, Asterglen acknowledges Copper Kestrel seeks \$120,000 on its counterclaim but contends a potential setoff does not bear on the legal basis for dismissal of Count I.

Fifth, Asterglen asserts economic hardship from postponing review because the dismissal removes a \$480,000 claim while discovery and trial on other matters continue. It supplies no solvency evidence and does not quantify financing cost.

Asterglen recognizes that fragmented appeals are disfavored and that the parties remain contestants below. It nevertheless asks the Court to find this case exceptional because the Count I dismissal is complete and turns on contract construction.

III. Requested findings

Asterglen asks the Court to find expressly that Count I is final, that there is no just reason for delay, that later events will not moot review, that repeat review is unlikely, that the counterclaim will not create a meaningful setoff concern, and that immediate review will reduce uncertainty.

Relief requested

Asterglen requests an order containing the findings stated above and directing the clerk to enter a separate partial judgment on Count I.

Respectfully submitted: January 20, 2026.

ASTERGLEN FREIGHT SOFTWARE, INC.

By fictional counsel:

/s/ Morgan Example

Morgan Example (fictional) synthetic-counsel (at) example.invalid

Certificate of service

The exercise states that this motion was electronically served on all synthetic counsel on January 20, 2026. No real filing or service occurred.

Proposed order warning

The motion specifically requests the words "there is no just reason for delay" and case-specific findings. The later court order does not adopt either. This distinction is intentional: a user's decision engine must inspect the entered order, not infer findings from a party's proposed language or from the fact that the motion was granted.